FOR A FREE CONSULTATION THROUGH THE LAW SOCIETY REFERRAL SERVICE

A side business, and my employment agreement

Steve Smith, Ontario. 12th November 2026. I will bring my employment agreement (sections 7 and 9 are the ones I am unsure about).

The situation in short

My job	Full time business coach at an Ontario organisation that supports independent optometry clinics through a buying group. I work directly with its member clinics. I do not run their hiring. I will name the employer in the consultation.
My side business	**Kestrel Eye Care Jobs** (eyecarejobs.ca): a job board for Canadian eye care. Clinics post jobs, and candidates (opticians, optometrists, assistants) apply. Not launched. Self funded, no partners, no investors, not yet incorporated.
The overlap	Kestrel's main audience is independent optometry clinics, and several hundred of them are my employer's members. My employer offers its members a members only job board. A subsidiary of my employer owns the best known public job board in the field. I do not work for that subsidiary.
What I have kept separate	No employer data, member lists, devices, accounts, email or branding. Own domain, email, accounts and hosting. Built in my own time. No clinic has been contacted, and contacting clinics stays switched off until my employer has been told.
Already public	The website with a waitlist (no real sign ups), a blog, and a LinkedIn page. Among the public pages: a blog post comparing optical buying groups, which names my employer alongside others from public information only, and a directory that lists buying groups the same way.
My plan	Tell my employer before launch and get their acknowledgement. Launch first with Ontario clinics posting their own jobs, free, with no outreach to clinics.

My questions, in order

1. **Sections 7 and 9.** What do they actually restrict: outside business activity, competing with my employer, approaching its members, using confidential information, or owning what I build?
2. **Does Kestrel fall inside them?** Is a public job board for the same clinics a competing business or a conflict of interest? Does the answer change if I never approach member clinics myself, or never use what I learn from coaching them?
3. **The disclosure.** What should I put in writing, and to whom? Do I need written consent, or is an acknowledgement enough? Is it a problem that the website, blog and LinkedIn page already exist, and should I pause anything until I have told them?
4. **If they object.** What are my realistic options: a promise not to approach member clinics, a delay, serving other clinics, suppliers and candidates first, or offering Kestrel to their members under an agreement with my employer?

What would help most

A plain answer on questions 1 and 2, and a sense of whether a short paid review of my disclosure letter is worth it. I am self funding, so I would like to know the cost of any next step before it starts.

I understand the consultation is free for up to 30 minutes and that I can then decide whether to hire the lawyer.